

HOUSE BILL 1483

By Gillespie

AN ACT to amend Tennessee Code Annotated, Title 40,
relative to bail.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 11, Part 1, is amended by adding the following new section:

(a) The following persons may deposit with the clerk of the court before which the proceeding is pending a sum of money in cash equal to the amount of the bail, as provided by § 40-11-118:

(1) A professional bondsman;

(2) A person with bailable interest. As used in this subdivision (a)(2), a "person with bailable interest" means the defendant or the defendant's spouse, parent, child, sibling, legal guardian, or employer; or

(3) Any other person.

(b) If a person other than those listed in subdivision (a)(1) or (2) deposits bail for a defendant and the defendant is subsequently convicted of a criminal offense that occurred while the defendant was released on bail due to the person's deposit, then any victim of the subsequent criminal offense may bring a civil cause of action against the person who deposited the bail to recover for damage to property, injury, or death arising from the subsequent criminal offense.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to causes of action arising on or after that date.